

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA

COLONIAL MANOR MHC HOLDINGS, LLC,
d/b/a COLONIAL MOBILE MANOR,

Plaintiff,

vs.

Case No. 2021-CC-

STEFANIE MICHELLE KRITZER and
ANY UNKNOWN TENANT(s),

Defendants.

**COMPLAINT SEEKING EVICTION, DAMAGES
AND OTHER RELIEF**

Plaintiff, COLONIAL MANOR MHC HOLDINGS, LLC, d/b/a COLONIAL MOBILE MANOR, sues the Defendants, STEFANIE MICHELLE KRITZER and ANY UNKNOWN TENANT(s), in possession of certain premises more fully described below, and alleges:

COUNT I
ACTION FOR POSSESSION

1. This is an action for removal of a mobile home park lot tenant and possession of the real property in Manatee County, Florida, as authorized by Section 723.061(1)(a) of Florida Statutes.

2. Plaintiff is a limited liability company owning and operating a mobile home park located in Manatee County, Florida.

3. Defendant, STEFANIE MICHELLE KRITZER, is a natural person believed to own a mobile home located at 900 - 9th Avenue East, Lot #104, Palmetto, Manatee County, Florida, 34221.

4 Defendant, ANY UNKNOWN TENANT(s), may reside on real property at 900 9th Avenue East, Lot #104, Palmetto, Manatee County, Florida, 34221, but if so, does without the consent of the Plaintiff.

5. Plaintiff owns, in fee, the real property located at 900 - 9th Avenue East, Palmetto, Florida, 34221, which has historically been known as COLONIAL MOBILE MANOR.

6. Plaintiff, as landlord, leased to Defendant, STEFANIE MICHELLE KRITZER, Lot #104 of the above stated mobile home park at a monthly rental fee of \$597.00 for a term of one (1) year, pursuant to Florida Statute §723.031. The Defendant owes lot rent for the month of November 2020 in the sum of \$597.00, plus late rent fees (\$45.00 per month) in the amount of \$45.00, pursuant to the rental agreement. In addition, Defendant is in arrears in rent for the months of September, October and December of 2020, and failed to pay rent for the month of January of 2021.

7. Defendant, STEFANIE MICHELLE KRITZER, is in default in the rental agreement with Plaintiff by failure to pay the total sum of \$3165.00 as of January 5, 2021.

8. On November 6, 2020, Plaintiff served on Defendants, STEFANIE MICHELLE KRITZER and ANY UNKNOWN TENANT(s), a Five Day Notice of Termination of Tenancy for Nonpayment of Rent. A copy of this Notice is attached and marked Plaintiff's Exhibit "A".

9. On November 6, 2020, Plaintiff served on Defendants, STEFANIE MICHELLE KRITZER and ANY UNKNOWN TENANT(s), a Five Day Notice of Termination of Tenancy for Nonpayment of Rent by Certified Mail Return Receipt Requested. A copy of the certified mail receipt signed by the Defendant, STEFANIE MICHELLE KRITZER, is

attached as Exhibit B.

10. ANY UNKNOWN TENANT(s), may reside or have an interest in Lot #104 of COLONIAL MANOR MHC HOLDINGS, LLC but said residence is without the knowledge or approval of the Plaintiff and said person(s) have no right to reside at said location.

11. Pursuant to Section 723.068 of Florida Statutes, Plaintiff is entitled to an award of attorney fees.

12. Plaintiff is entitled to the summary procedure of Section 51.011 of the Florida Statutes.

WHEREFORE, Plaintiff requests this Honorable Court enter a judgment for possession of the premises together with costs and reasonable attorney's fees against Defendants, STEFANIE MICHELLE KRITZER and ANY UNKNOWN TENANT(s), and such other and further relief as the Court may deem proper.

COUNT II
ACTION FOR DAMAGES (RENTAL)

13. This is an action seeking less than \$5,000.00 excluding costs, interest and attorney fees.

14. Plaintiff re-alleges the facts contained within paragraphs 1 through 12 as though fully set forth herein.

15. Defendant, STEFANIE MICHELLE KRITZER, owes the Plaintiff the sum of \$ 3165.00 plus interest, costs and a reasonable attorney fee.

WHEREFORE, Plaintiff requests this Honorable Court enter a judgment against Defendant, STEFANIE MICHELLE KRITZER, for damages, costs, and attorney's fee's.

COUNT III
ACTION TO ENFORCE LANDLORD'S LIEN

16. This is an action seeking to enforce a landlord's lien pursuant to Sections 713.691 and 713.77 of Florida Statutes.

17. The Plaintiff re-alleges the facts contained within paragraphs 1 through 12 and paragraph 15 as though fully set forth herein.

18. Defendant, STEFANIE MICHELLE KRITZER, is the registered owner of a *1970 double-wide mobile home, Vehicle Identification No. 1G4024C2N13182L, Title No. 0008382176 and Vehicle Identification No. 1G4024C2N13182R, Title No. 0008382175* which is located on Lot #104 of the property leased by the Plaintiff to the Defendants.

19. The Plaintiff is entitled to a landlord's lien against said mobile home to enforce its judgment against Defendant for unpaid rent, utility bills, late fees, court costs and a reasonable attorney fee for the pursuit of this eviction and for related relief.

20. The Plaintiff claims entitlement to enforce its lien against said mobile home by judicial sale pursuant to Florida Statute §45.031.

21. Upon Plaintiff being entitled to credit toward the purchase of the mobile home in the sum representing all of Plaintiff's judgment against the Defendants, and ANY UNKNOWN TENANT(s), it will have perfected its landlord lien against the personal property of Defendants, namely a *1970 double-wide mobile home, Vehicle Identification No. 1G4024C2N13182L, Title No. 0008382176 and Vehicle No. 1G4024C2N13182R, Title No. 0008382175*, to which Plaintiff is entitled to sell to satisfy its judgment against Defendants.

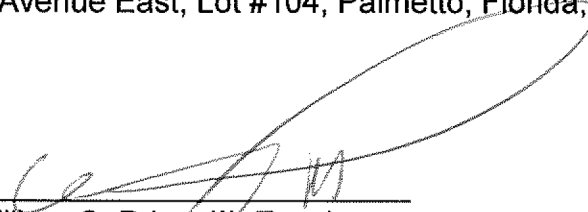
22. The Plaintiff is entitled to credit toward the purchase of said mobile home in

the sum representing all of Plaintiff's judgment against the Defendant, STEFANIE MICHELLE KRITZER, all costs of this proceeding and reasonable attorney's fees.

WHEREFORE, the Plaintiff prays this Honorable Court enter an order, ordering a judicial sale of the mobile home identified herein pursuant to Florida Statute §45.031 to occur between thirty (30) and forty-five (45) days from the rendition of judgment in the above-styled cause, and to grant the Plaintiff a credit toward the purchase of the mobile home representing the unpaid balance of the Plaintiff's judgment against Defendants, plus any costs expended by it for obtaining the judicial sale and a reasonable attorney's fee.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true copy of the foregoing Complaint Seeking Eviction, Damages and Other Relief has been furnished to a private process server for service upon the Defendants, STEFANIE MICHELLE KRITZER and ANY UNKNOWN TENANT(s), at their last known address of 900 - 9th Avenue East, Lot #104, Palmetto, Florida, 34221, on this 4th day of JANUARY, 2021.



William C. Price, III, Esquire
Florida Bar No. 0333824
WILLIAM C. PRICE, III, P.A.
522 Twelfth Street West
Bradenton, Florida 34205
Telephone: (941) 747-8001
Facsimile: (941) 747-3730
Primary E-Mail: pleadings@wcpricelaw.com
Attorney for Plaintiff

November 06, 2020

File
Post 11-6

**FIVE DAY NOTICE OF TERMINATION OF TENANCY
FOR NON PAYMENT OF RENT**

TO: Stefanie Kritzer
900 9th Ave E Lot # 104
Palmetto 34221

Re: Colonial Manor # 104
900 9th Avenue East
Palmetto Manatee County, Florida 34221

Pursuant to the provisions of Section 723.061(1)(a) of the Florida Statutes, you are hereby notified that you are in default of the lot rent for Lot # 104 of Colonial Manor

900 9th Avenue East
Palmetto FL 34221

The lot rent amount currently owing for the month of November, 2020 is \$ 697
per month plus \$ 45 per month in additional late payment fees for a total of \$ 1926.00

DEMAND is hereby made for the sum of \$ 1926.00 within five (5) days after the delivery of is notice. Full payment must be made to Colonial Manor. Failure to pay the amount due will result in your eviction from Colonial Manor and a judgment will be entered against you, said judgment staying on your credit record for ten (10) years.

I HEREBY CERTIFY that a true and correct copy of the foregoing Five Day Notice of Termination of Tenancy for Non Payment of Rent has been furnished by U.S. Certified Mail - Return Receipt Requested (# 7015 1520) and by posting at the following address:

Stefanie Kritzer
900 9th Ave E Lot # 104
Palmetto Manatee County, Florida 34221

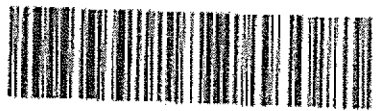
this 6 day of November, 2020

Kathy Hoff
Park Representative

Posted by: Kathy Hoff (Printed Name) on November 06, 2020 (date)

EXHIBIT

A



First-Class Mail
Postage & Fees Paid
USPS
Permit No. G-10

9590 9402 1439 5329 4366 56

United States
Postal Service

* Sender: Please print your name, address, and ZIP+4® in this box*

Colonial Manor MHP
900 9th Ave East
Palmetto, FL 34221

SENDER: COMPLETE THIS SECTION

- Complete items 1, 2, and 3.
- Print your name and address on the reverse so that we can return the card to you.
- Attach this card to the back of the mailpiece, or on the front if space permits.

Article Addressed to:
Stefanie Krutzer
900 9th Ave E Lot 104
Palmetto FL 34221



9590 9402 1439 5329 4366 56

2. Article No. 65 1520 0002 3997 9501

PG 3811, July 2015 PSN 7530-02-000-0003

COMPLETE THIS SECTION ON DELIVERY

A. Signature
x Stefanie Krutzer ☐ Agent
B. Received by (Printed Name) STEFANIE KRUTZER
C. Date of Delivery 11/13
D. Is delivery address different from item 1? ☐ Yes
If YES, enter delivery address below: ☐ No

3. Service Type
- ☐ Adult Signature
 - ☐ Adult Signature Restricted Delivery
 - ☒ Certified Mail®
 - ☐ Certified Mail Restricted Delivery
 - ☐ Collect on Delivery
 - ☐ Insured Mail
 - ☐ Insured Mail Restricted Delivery
 - ☐ Mail Restricted Delivery (over \$500)
 - ☐ Priority Mail Express®
 - ☐ Registered Mail™
 - ☐ Registered Mail Restricted Delivery
 - ☐ Return Receipt for Merchandise
 - ☐ Signature Confirmation™
 - ☐ Signature Confirmation Restricted Delivery

Domestic Return Receipt

EXHIBIT

B